

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Griffin	Team: Squad #5	CCRB Case #: 201709340	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 11/05/2017 11:48 PM	Location of Incident: § 87(2)(b) § 87(2)(b) 34th Precinct stationhouse	Precinct: 34	18 Mo. SOL 5/5/2019	EO SOL 5/5/2019	
Date/Time CV Reported Sat, 11/11/2017 9:28 AM	CV Reported At: CCRB	How CV Reported: E-mail	Date/Time Received at CCRB Sat, 11/11/2017 9:28 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Anderson Ortiz	3319	949424	033 PCT
2. An officer			033 PCT
3. POM Anthony Raimone	30240	954257	033 PCT
4. Officers			033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Joseph Carolan	07447	953730	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: At § 87(2)(b) and § 87(2)(b) officers stopped § 87(2)(b)	§ 87(2)(b)
B. Officers	Abuse: At § 87(2)(b) and § 87(2)(b) officers stopped § 87(2)(b)	§ 87(2)(b)
C. SGT Anderson Ortiz	Abuse: At § 87(2)(b) and § 87(2)(b) Sergeant Anderson Ortiz frisked § 87(2)(b)	§ 87(2)(b)
D. An officer	Abuse: At § 87(2)(b) and § 87(2)(b) an officer frisked § 87(2)(b)	§ 87(2)(b)
E. An officer	Abuse: At § 87(2)(b) and § 87(2)(b) an officer interfered with § 87(2)(b)'s use of a recording device.	§ 87(2)(b)
F. POM Anthony Raimone	Abuse: At § 87(2)(b) and § 87(2)(b) Police Officer Anthony Raimone searched § 87(2)(b)	§ 87(2)(b)
G. SGT Anderson Ortiz	Abuse: At § 87(2)(b) and § 87(2)(b) Sergeant Anderson Ortiz searched § 87(2)(b)	§ 87(2)(b)
H. An officer	Force: At § 87(2)(b) and § 87(2)(b) an officer used physical force against § 87(2)(b)	§ 87(2)(b)
I. POM Anthony Raimone	Abuse: At § 87(2)(b) and § 87(2)(b) Police Officer Anthony Raimone issued a summons to § 87(2)(b)	§ 87(2)(b)
J. An officer	Abuse: At § 87(2)(b) and § 87(2)(b) an officer issued a summons to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K. An officer	Abuse: At the 34th Precinct stationhouse, an officer strip-searched § 87(2)(b)	
L. An officer	Abuse: At the 34th Precinct stationhouse, an officer strip-searched § 87(2)(b)	
M.SGT Anderson Ortiz	Off. Language: At the 34th Precinct stationhouse, Sergeant Anderson Ortiz made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	
N.SGT Anderson Ortiz	Off. Language: At the 34th Precinct stationhouse, Sergeant Anderson Ortiz made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	

Case Summary

On November 7, 2017, § 87(2)(b) filed this complaint at the 34th Precinct stationhouse on behalf of himself and § 87(2)(b). On November 11, 2017, a reporting non-witness, § 87(2)(b) filed a duplicate complaint regarding the incident with the CCRB via email. On November 15, 2017, IAB referred § 87(2)(b)'s complaint to the CCRB via Log #17-44370. On January 16, 2018, another reporting non-witness, § 87(2)(b) filed a duplicate complaint regarding the incident with the CCRB via email.

On November 16, 2017, the undersigned investigator attempted to call § 87(2)(b) and left a voicemail message. On November 16, 2017, a please call letter was mailed to § 87(2)(b) and § 87(2)(b). On November 16, 2017, § 87(2)(b) attempted to call the undersigned investigator, but did not leave a voicemail message. On November 16, 2017, the undersigned investigator called § 87(2)(b). An unidentified female answered and stated § 87(2)(b) was sleeping and that § 87(2)(b) would call the undersigned investigator at a later time. On November 17, 2017, a Lexis Nexis search was conducted on § 87(2)(b) which identified an email address. On November 17, 2017, a please call letter was emailed to § 87(2)(b).

On November 20, 2017, the undersigned investigator called § 87(2)(b) who requested to be called back after 1PM. At 4PM, the undersigned investigator called § 87(2)(b) § 87(2)(b) provided a phone statement and a telephone number for § 87(2)(b) § 87(2)(b) indicated that § 87(2)(b) speaks Spanish. The undersigned investigator offered a field interview, which § 87(2)(b) § 87(2)(b) stated he would be interested in. On November 22, 2017, the undersigned investigator attempted to call § 87(2)(b) and left a voicemail message. On November 22, 2017, a final please call letter was mailed to § 87(2)(b). On November 24, 2017, the undersigned investigator called § 87(2)(b) to discuss scheduling a field interview. § 87(2)(b) wanted to speak with § 87(2)(b) before scheduling and stated he would call the undersigned investigator with a date and time. On November 26, 2017, Investigator Harold Rodriguez attempted to call § 87(2)(b) however the telephone number would not dial out. On November 27, 2017, the undersigned investigator attempted to call § 87(2)(b) and left a voicemail message. On November 27, 2017, Investigator Rolando Vasquez attempted to call § 87(2)(b) and a busy tone was heard. On November 27, 2017, a Spanish final please call letter was mailed to § 87(2)(b).

On November 28, 2017, the undersigned investigator called § 87(2)(b) and scheduled him and § 87(2)(b) for a field interview on December 6, 2017, at the Fort Washington Library in Manhattan. On November 29, 2017, a free form email was sent to § 87(2)(b) and § 87(2)(b) with the details of their appointment. On December 5, 2017, the undersigned investigator called § 87(2)(b) who confirmed the field interview for the next day. On December 6, 2017, § 87(2)(b) and § 87(2)(b) failed to appear for their field interview at the Fort Washington Library. Neither § 87(2)(b) nor § 87(2)(b) called in advance to cancel or reschedule. The undersigned investigator attempted to call § 87(2)(b) during the scheduled interview time, and left a voicemail message. Upon return to the office, the undersigned investigator had no missed calls from either § 87(2)(b) or § 87(2)(b). On December 7, 2017, a missed appointment letter was mailed to § 87(2)(b) and § 87(2)(b). On December 7, 2017, the undersigned investigator attempted to call § 87(2)(b) and left a voicemail message. On December 7, 2017, Inv. Vasquez attempted to call § 87(2)(b) and an automated message stated "this number is not in service." On December 11,

2017, a Spanish final please call letter was mailed to § 87(2)(b) and a final please call letter was mailed to § 87(2)(b).

On December 11, 2017, the undersigned investigator called § 87(2)(b). The undersigned investigator inquired about the missed appointment and § 87(2)(b) stated that § 87(2)(b) had rescheduled the appointment date/time with the undersigned investigator. § 87(2)(b) passed his phone to § 87(2)(b) who stated that he had tried to call the undersigned investigator during the missed appointment. § 87(2)(b) rescheduled his and § 87(2)(b)'s appointment for December 18, 2017, at the CCRB. § 87(2)(b) and § 87(2)(b) accepted text message reminders.

On December 14, 2017, a customized text message was sent to § 87(2)(b) and § 87(2)(b) with details of their appointment. On December 16, 2017, a text message reminder was sent to § 87(2)(b) and § 87(2)(b). On December 18, 2017, § 87(2)(b) and § 87(2)(b) failed to appear for their appointment at the CCRB. Neither § 87(2)(b) nor § 87(2)(b) called in advance to cancel or reschedule. On December 18, 2017, a missed appointment letter was mailed to § 87(2)(b) and § 87(2)(b). On December 19, 2017, the undersigned investigator attempted to call § 87(2)(b) and § 87(2)(b). A voicemail message was left for each. In the voicemail, the undersigned investigator informed § 87(2)(b) and § 87(2)(b) that the complaint could not be kept open indefinitely and if they wished to pursue the complaint to call the undersigned investigator. A December 19, 2017 search of the Department of Corrections Inmate Locator confirmed that neither § 87(2)(b) nor § 87(2)(b) was incarcerated.

On December 19, 2017, § 87(2)(b) attempted to call the undersigned investigator and left a voicemail message requesting a call back. On December 20, 2017, the undersigned investigator attempted to call § 87(2)(b) and left a voicemail message. On December 20, 2017, § 87(2)(b) attempted to call the undersigned investigator two times, but did not leave a voicemail message. On December 20, 2017, Inv. Vasquez attempted to call § 87(2)(b) and left a voicemail in Spanish. On December 20, 2017, § 87(2)(b) called Inv. Vasquez and scheduled an appointment for January 3, 2018. On January 1, 2018, a text message reminder was sent to § 87(2)(b). On January 3, 2018, § 87(2)(b) failed to appear for his appointment and did not call in advance to cancel or reschedule. On January 3, 2018, a missed appointment letter was mailed to § 87(2)(b).

Between January 5, 2018 and January 23, 2018, the undersigned investigator attempted to call § 87(2)(b) seven times. On all seven attempts the telephone number was not in operation. On January 5, 2018 and January 17, 2018, two Spanish final please call letters were mailed to § 87(2)(b). On January 17, 2018, a final please call letter was mailed to § 87(2)(b). Between January 18, 2018 and January 23, 2018, the undersigned investigator attempted to call § 87(2)(b) four times. § 87(2)(b)'s telephone was not accepting incoming calls on each attempt.

A January 23, 2018 search of the Department of Corrections Inmate Locator confirmed that neither § 87(2)(b) nor § 87(2)(b) is incarcerated. None of the letters mailed to § 87(2)(b) or § 87(2)(b) were returned to the CCRB by the United States Postal Service. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date